

1.

CASE #	CASE NAME	HEARING NAME
CVPS2400373	FIGUEROA ROJAS VS AMERICAN HONDA MOTOR CO., INC.	MOTION FOR ATTORNEYS FEES

Tentative Ruling:

The Court has recused itself from this case.

The hearing on this Motion for Attorneys' Fees is CONTINUED until June 12, 2026 at 8:30 am.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2506687	ARRENDADORA DE EQUIPO Y MAQUINARIA ESPECIALIZADA, S.A. DE C.V. VS COMBUSTION ASSOCIATES, INC.	MOTION FOR LEAVE TO AMEND COMPLAINT

Tentative Ruling:

Code of Civil Procedure section 473 authorizes the court to grant leave to amend any pleading "in furtherance of justice, and on such terms as may be proper." A motion for relief under CCP §473 is addressed to the sound discretion of the trial court, and the exercise of that discretion will not be disturbed on appeal unless there is a clear showing that it was abused. (*Carroll v. Abbott Laboratories, Inc.* (1982) 32 Cal.3d 892, 897-898; *Record v. Reason* (1999) 73 Cal.App.4th 472, 486.)

California courts have developed "a policy of great liberality in allowing amendments at any stage of the proceeding so as to dispose of cases upon their substantial merits where the authorization does not prejudice the substantial rights of others." (*Dunzweiler v. Superior Court* (1968) 267 Cal.App.2d 569, 576.) Thus, if a motion is timely and the amended pleading will not prejudice the opposing party, it is error not to allow leave to amend. (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048; *Morgan v. Superior Court* (1959) 172 Cal.App.2d 527, 530 ["If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion"].)

Plaintiff's motion is unopposed.

Ordinarily, the Court would grant this unopposed motion. However, on May 7, 2026, the Court granted Defendant's motion to Compel Arbitration and stayed the case pending arbitration. (See Court Minute Order: Hearing on Motion to Compel Arbitration,

May 7, 2026.) Since this case is stayed pending arbitration, this Court has no jurisdiction over Plaintiff's Motion to Amend his Complaint. Instead, Plaintiff will have to address his Motion to the arbitrator.

Plaintiff's Motion to File a First Amended Complaint is DENIED without prejudice.